

23SMCV05956 23SMCV05956

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-23

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This is a request by plaintiff's counsel to continue the

hearing on defendant's motion to compel plaintiff's deposition until the motion

would become moot. Apparently, the

parties are squabbling over deposition dates.

Plaintiff contends that it sent out the first notice and has always

thought that plaintiff's deposition should therefore follow defendants'

deposition. Defendants then noticed

plaintiff's deposition, and defendants want plaintiff to be deposed first. Right now, defendants are set to be deposed

on July 29 and July 30. Plaintiff has

agreed to be deposed on July 31.

The court first notes that there is no code-authorized

sequencing or priority of depositions.

Under the CCP, it does not matter who noticed the deposition first. Apparently, plaintiff thinks it does. Having said that, the court is not sure why

it is that defendants really care either.

If there is no sequencing, then there is no sequencing.

The court is inclined to DENY the application. Counsel will just have to find a way. At the hearing, the court will either deny the motion, in which case the court expects the motions to go forward on the date above, or grant the motion, in which case the court will order the deposition to go forward the week of July 20—plaintiff can pick the day. The court does not intend to hear argument today.